



ILLINOIS ENVIRONMENTAL PROTECTION AGENCY

1021 NORTH GRAND AVENUE EAST, P.O. BOX 19276, SPRINGFIELD, ILLINOIS 62794-9276 • (217) 782-3397

JB PRITZKER, GOVERNOR

JOHN J. KIM, DIRECTOR

217/785-1705

CONSTRUCTION PERMIT -- NSPS/NESHAP SOURCE

PERMITTEE

Aligned Data Centers (ORD) PropCo, LLC
Attn: Jeffrey Colby
505 Northwest Ave
Northlake, Illinois 60164

Application No.: 21050040

I.D. No.: 031471AEN

Applicant's Designation:

Date Received: May 10, 2021

Subject: New Data Center

Date Issued: October 4, 2021

Location: 505 Northwest Ave, Northlake, Cook County, 60164

This permit is hereby granted to the above-designated Permittee to CONSTRUCT emission unit(s) and/or air pollution control equipment consisting of:

Forty-Nine (49) 3,000 kW (4,393 BHP) Diesel Emergency Generators;
Two (2) 500 kW (762 BHP) Diesel Emergency Generators;

pursuant to the above-referenced application. This Permit is subject to standard conditions attached hereto and the following special condition(s):

- 1a. This permit is issued based on the construction of the Emergency Generators not constituting a new major source or major modification pursuant to Title I of the Clean Air Act, specifically 35 Ill. Adm. Code Part 203, Major Stationary Sources Construction and Modification. The source has requested that the Illinois EPA establish emission limitations and other appropriate terms and conditions in this permit that limit the emissions of Nitrogen Oxides (NOx) from the above-listed equipment below the levels that would trigger the applicability of these rules.
- b. Operation of the Emergency Generators is allowed under this construction permit for twelve (12) months after the date of initial startup.
- 2a. The Diesel-Powered Emergency Generators are subject to the New Source Performance Standards (NSPS) for Stationary Compression Ignition Internal Combustion Engines, 40 CFR 60 Subparts A and IIII. The Illinois EPA is administering the NSPS in Illinois on behalf of the United States Environmental Protection Agency (USEPA) under a delegation agreement. Pursuant to 40 CFR 60.4200(a), the provisions of 40 CFR 60 Subpart IIII are applicable to manufacturers, owners, and operators of stationary compression ignition (CI) internal combustion engines (ICE) and other persons as specified in 40 CFR 60.4200(a) (1) through (4). For the purposes of 40 CFR 60 Subpart IIII, the date that

2125 S. First Street, Champaign, IL 61820 (217) 278-5800
1101 Eastport Plaza Dr., Suite 100, Collinsville, IL 62234 (618) 346-5120
9511 Harrison Street, Des Plaines, IL 60016 (847) 294-4000
595 S. State Street, Elgin, IL 60123 (847) 608-3131

2309 W. Main Street, Suite 116, Marion, IL 62959 (618) 993-7200
412 SW Washington Street, Suite D, Peoria, IL 61602 (309) 671-3022
4302 N. Main Street, Rockford, IL 61103 (815) 987-7760

construction commences is the date the engine is ordered by the owner or operator.

- i. Owners and operators of stationary CI ICE that commence construction after July 11, 2005, where the stationary CI ICE are:
 - A. Manufactured after April 1, 2006, and are not fire pump engines,
 - B. Manufactured as a certified National Fire Protection Association (NFPA) fire pump engine after July 1, 2006.
 - ii. Owners and operators of any stationary CI ICE that are modified or reconstructed after July 11, 2005 and any person that modifies or reconstructs any stationary CI ICE after July 11, 2005.
 - iii. The provisions of 40 CFR 60.4208 are applicable to all owners and operators of stationary CI ICE that commence construction after July 11, 2005.
- b. Pursuant to 40 CFR 60.4202(a)(2), Stationary CI internal combustion engine manufacturers must certify their 2007 model year and later emergency stationary CI ICE with a maximum engine power less than or equal to 2,237 KW (3,000 HP) and a displacement of less than 10 liters per cylinder that are not fire pump engines to the emission standards specified in paragraphs (a)(1) through (2).

For engines with a maximum engine power greater than or equal to 37 KW (50 HP), the certification emission standards for new nonroad CI engines for the same model year and maximum engine power in 40 CFR 89.112 and 40 CFR 89.113 for all pollutants beginning in model year 2007.

- c. Pursuant to 40 CFR 60.4202(b)(2), stationary CI internal combustion engine manufacturers must certify their 2007 model year and later emergency stationary CI ICE with a maximum engine power greater than 2,237 KW (3,000 HP) and a displacement of less than 10 liters per cylinder that are not fire pump engines to the emission standards specified in 40 CFR 60.4202(b)(1) through (2).

For 2011 model year and later, the certification emission standards for new nonroad CI engines for engines of the same model year and maximum engine power in 40 CFR 89.112 and 40 CFR 89.113 for all pollutants.

- d. Pursuant to 40 CFR 60.4205(b), owners and operators of 2007 model year and later emergency stationary CI ICE with a displacement of less than 30 liters per cylinder that are not fire pump engines must comply with the emission standards for new nonroad CI engines in 40 CFR 60.4202, for all pollutants, for the same model year and maximum engine power for their 2007 model year and later emergency stationary CI ICE.
- 3a. The Diesel-Powered Emergency Generators are subject to the National Emission Standards for Hazardous Air Pollutants (NESHAP) for Stationary

Reciprocating Internal Combustion Engines, 40 CFR 63 Subparts A and ZZZZ. The Illinois EPA is administering the NESHAP in Illinois on behalf of the USEPA under a delegation agreement. Pursuant to 40 CFR 63.6590(a), an affected source is any existing, new or reconstructed stationary RICE located at a major or area source of HAP emissions, excluding stationary RICE being tested at a stationary RICE test cell/stand.

New stationary RICE.

A stationary RICE located at an area source of HAP emissions is new if you commenced construction of the stationary RICE on or after June 12, 2006.

- b. Pursuant to 40 CFR 63.6590(c)(1), a new or reconstructed stationary RICE located at an area source must meet the requirements of 40 CFR Part 63 by meeting the requirements of 40 CFR 60 Subpart IIII, for compression ignition engines or 40 CFR 60 Subpart JJJJ, for spark ignition engines. No further requirements apply for such engines under 40 CFR Part 63.
- 4a. The Diesel-Powered Emergency Generators are subject to 40 CFR 89.112 and 40 CFR 89.113 per 40 CFR 60.4202(a)(2) and 40 CFR 60.4205(b). Pursuant to 40 CFR 89.112(a), exhaust emission from nonroad engines to which 40 CFR 89 Subpart B is applicable shall not exceed the applicable exhaust emission standards contained in Table 1, as follows:

Table 1 – Emission Standards (g/kW-hr)

Rated Power (kW)	Tier	Model Year ¹	NO _x	HC	NMHC + NO _x	CO	PM
kW>560	Tier 1	2000	9.2	1.3	--	11.4	0.54
	Tier 2	2006	--	--	6.4	3.5	0.20

¹ The model years listed indicates the model years for which the specified tier of standards take effect.

- b. Pursuant to 40 CFR 89.112(d), in lieu of the NO_x standards, NMHC + NO_x standards, and PM standards specified in 40 CFR 89.112(a), manufacturers may elect to include engine families in the averaging, banking, and trading program, the provisions of which are specified in 40 CFR 89 Subpart C. The manufacturer must set a family emission limit (FEL) not to exceed the levels contained in Table 2. The FEL established by the manufacturer serves as the standard for that engine family as follows:

Table 2 – Upper Limit for Family Emission Limits (g/kW-hour)

Rated Power (kW)	Tier	Model Year ¹	NO _x FEL	NMHC + NO _x FEL	PM FEL
kW>560	Tier 1	2000	14.6	---	---
	Tier 2	2006	---	10.5	0.54

¹ The model years listed indicate the model years for which the specified tier of standards take effect.

- c. Pursuant to 40 CFR 89.112(e), naturally aspirated nonroad engines to which 40 CFR 89 Subpart B is applicable shall not discharge crankcase emissions into the ambient atmosphere, unless such crankcase emissions are permanently routed into the exhaust and included in all exhaust emission measurements. This provision applies to all Tier 2 engines and later models. This provision does not apply to engines using turbochargers, pumps, blowers, or superchargers for air induction.
 - d. Pursuant to 40 CFR 89.113(a), exhaust opacity from compression-ignition nonroad engines for which 40 CFR 89 Subpart B is applicable must not exceed:
 - i. 20 percent during the acceleration mode;
 - ii. 15 percent during the lugging mode; and
 - iii. 50 percent during the peaks in either the acceleration or lugging modes.
 - e. Pursuant to 40 CFR 89.113(c)(3), constant-speed engines are exempt from the requirements of 40 CFR 89.113.
- 5a. The Diesel-Powered Emergency Generators are subject to 35 Ill. Adm. Code Part 212 Subpart B (Visible Emissions). Pursuant to 35 Ill. Adm. Code 212.123(a), no person shall cause or allow the emission of smoke or other particulate matter, with an opacity greater than 30 percent, into the atmosphere from any emission unit other than those emission units subject to 35 Ill. Adm. Code 212.122.
- b. Pursuant to 35 Ill. Adm. Code 212.123(b), the emission of smoke or other particulate matter from any such emission unit may have an opacity greater than 30 percent but not greater than 60 percent for a period or periods aggregating 8 minutes in any 60 minute period provided that such opaque emissions permitted during any 60 minute period shall occur from only one such emission unit located within a 305 meter (1000 foot) radius from the center point of any other such emission unit owned or operated by such person, and provided further that such opaque emissions permitted from each such emission unit shall be limited to 3 times in any 24 hour period.
 - c. The Diesel-Powered Emergency Generators are subject to 35 Ill. Adm. Code Part 212 Subpart L (Particulate Matter Emissions from Process Emission Units). Pursuant to 35 Ill. Adm. Code 212.321(a), except as further provided in 35 Ill. Adm. Code Part 212, no person shall cause or allow the emission of particulate matter into the atmosphere in any one hour period from any new process emission unit which, either alone or in combination with the emission of particulate matter from all other similar process emission units for which construction or modification commenced on or after April 14, 1972, at a source or premises, exceeds the allowable emission rates specified in 35 Ill. Adm. Code 212.321(c).

- d. Pursuant to 35 Ill. Adm. Code 212.321(b), interpolated and extrapolated values of the data in 35 Ill. Adm. Code 212.321(c) shall be determined by using the equation:

$$E = A(P)^B$$

where:

P = Process weight rate; and
E = Allowable emission rate; and,

- i. Up to process weight rates of 408 Mg/hr (450 T/hr):

	Metric	English
P	Mg/hr	T/hr
E	kg/hr	lbs/hr
A	1.214	2.54
B	0.534	0.534

- ii. For process weight rate greater than or equal to 408 Mg/hr (450 T/hr):

	Metric	English
P	Mg/hr	T/hr
E	kg/hr	lbs/hr
A	11.42	24.8
B	0.16	0.16

- e. Pursuant to 35 Ill. Adm. Code 212.321(c), Limits for Process Emission Units For Which Construction of Modification Commenced On or After April 14, 1972:

Metric		English	
P	E	P	E
Mg/hr	kg/hr	T/hr	lbs/hr
0.05	0.25	0.05	0.55
0.1	0.29	0.10	0.77
0.2	0.42	0.20	1.10
0.3	0.64	0.30	1.35
0.4	0.74	0.40	1.58
0.5	0.84	0.50	1.75
0.7	1.00	0.75	2.40
0.9	1.15	1.00	2.60
1.8	1.66	2.00	3.70
2.7	2.1	3.00	4.60
3.6	2.4	4.00	5.35
4.5	2.7	5.00	6.00
9.	3.9	10.00	8.70
13.	4.8	15.00	10.80
18.	5.7	20.00	12.50
23.	6.5	25.00	14.00
27.	7.1	30.00	15.60

Metric		English	
P	E	P	E
Mg/hr	kg/hr	T/hr	lbs/hr

32.	7.7	35.00	17.00
36.	8.2	40.00	18.20
41.	8.8	45.00	19.20
45.	9.3	50.00	20.50
90.	13.4	100.00	29.50
140.	17.0	150.00	37.00
180.	19.4	200.00	43.00
230.	22.	250.00	48.50
270.	24.	300.00	53.00
320.	26.	350.00	58.00
360.	28.	400.00	62.00
408.	30.1	450.00	66.00
454.	30.4	500.00	67.00

where:

P = Process weight rate in metric or T/hr, and
E = Allowable emission rate in kg/hr or lbs/hr.

- 6a. The Diesel-Powered Emergency Generators are subject to 35 Ill. Adm. Code Part 214 Subpart K (Process Emission Sources). Pursuant to 35 Ill. Adm. Code 214.301, no person shall cause or allow the emission of sulfur dioxide into the atmosphere from any process emission source to exceed 2000 ppm.
- b. Pursuant to 35 Ill. Adm. Code 214.305(a)(2), except as provided in 35 Ill. Adm. Code 214.305(b), (c), and (d), on and after January 1, 2017, the owner or operator of a process emission source must comply with the following:

The sulfur content of all distillate fuel oil used by the process emission source must not exceed 15 ppm;
7. The Diesel-Powered Emergency Generators are subject to 35 Ill. Adm. Code Part 218 Subpart G (Use of Organic Material). Pursuant to 35 Ill. Adm. Code 218.301, no person shall cause or allow the discharge of more than 3.6 kg/hr (8 lbs/hr) of organic material into the atmosphere from any emission source, except as provided in 35 Ill. Adm. Code 218.302, 218.303, or 218.304 and the following exception: If no odor nuisance exists the limitation of 35 Ill. Adm. Code Part 218 Subpart G shall only apply to photochemically reactive material.
8. This permit is issued based on the Diesel-Powered Emergency Generators at this source not being subject to 35 Ill. Adm. Code Part 217 Subpart Q (Stationary Reciprocating Internal Combustion Engines And Turbines) because the potential to emit for NO_x from this source is less than 100 tons per year. This is a result of the federally enforceable limitations of this permit, which limit the potential to emit NO_x in an amount less than 100 tons per year.
9. This permit is issued based on the Diesel-Powered Emergency Generators not being subject to the control requirements of 35 Ill. Adm. Code Part 218 Subpart TT (Other Emission Units). Pursuant to 35 Ill. Adm. Code 218.980(f), the control requirements in 35 Ill. Adm. Code Part 218 Subpart TT shall not apply to fuel combustion units.

- 10a. Pursuant to 40 CFR 60.11(b), compliance with opacity standards in 40 CFR Part 60 shall be determined by conducting observations in accordance with Method 9 in Appendix A of 40 CFR Part 60, any alternative method that is approved by the Illinois EPA or USEPA, or as provided in 40 CFR 60.11(e) (5). For purposes of determining initial compliance, the minimum total time of observations shall be 3 hours (30 6-minute averages) for the performance test or other set of observations (meaning those fugitive-type emission sources subject only to an opacity standard).
- b. Pursuant to 40 CFR 60.11(c), the opacity standards set forth in 40 CFR Part 60 shall apply at all times except during periods of startup, shutdown, malfunction, and as otherwise provided in the applicable standard.
- c. Pursuant to 40 CFR 60.11(d), at all times, including periods of startup, shutdown, and malfunction, owners and operators shall, to the extent practicable, maintain and operate any affected facility including associated air pollution control equipment in a manner consistent with good air pollution control practice for minimizing emissions. Determination of whether acceptable operating and maintenance procedures are being used will be based on information available to the Illinois EPA or USEPA which may include, but is not limited to, monitoring results, opacity observations, review of operating and maintenance procedures, and inspection of the source.
- 11a. Pursuant to 40 CFR 60.4206, owners and operators of stationary CI ICE must operate and maintain stationary CI ICE that achieve the emission standards as required in 40 CFR 60.4204 and 60.4205 according to the manufacturer's written instructions or procedures developed by the owner or operator that are approved by the engine manufacturer, over the entire life of the engine.
- b. Pursuant to 40 CFR 60.4207(b), beginning October 1, 2010, owners and operators of stationary CI ICE subject to 40 CFR 60 Subpart IIII with a displacement of less than 30 liters per cylinder that use diesel fuel must use diesel fuel that meets the requirements of 40 CFR 80.510(b) for nonroad diesel fuel, except that any existing diesel fuel purchased (or otherwise obtained) prior to October 1, 2010, may be used until depleted.
- c. Pursuant to 40 CFR 60.4211(a), if you are an owner or operator and must comply with the emission standards specified in 40 CFR 60 Subpart IIII, you must do all of the following, except as permitted under 40 CFR 60.4211(g):
 - i. Operate and maintain the stationary CI internal combustion engine and control device according to the manufacturer's written instructions;
 - ii. Change only those settings that are permitted by the manufacturer; and

- iii. Meet the requirements of 40 CFR Parts 89, 94 and/or 1068, as they apply to you.
- d. Pursuant to 40 CFR 60.4211(c), if you are an owner or operator of a 2007 model year and later stationary CI internal combustion engine and must comply with the emission standards specified in 40 CFR 60.4204(b) or 40 CFR 60.4205(b), or if you are an owner or operator of a CI fire pump engine that is manufactured during or after the model year that applies to your fire pump engine power rating in table 3 to 40 CFR 60 Subpart IIII and must comply with the emission standards specified in 40 CFR 60.4205(c), you must comply by purchasing an engine certified to the emission standards in 40 CFR 60.4204(b), or 40 CFR 60.4205(b) or (c), as applicable, for the same model year and maximum (or in the case of fire pumps, NFPA nameplate) engine power. The engine must be installed and configured according to the manufacturer's specifications, except as permitted in 40 CFR 60.4211(g).
- e. Pursuant to 40 CFR 60.4211(f), if you own or operate an emergency stationary ICE, you must operate the emergency stationary ICE according to the requirements in 40 CFR 60.4211(f)(1) through (3). In order for the engine to be considered an emergency stationary ICE under 40 CFR 60 Subpart IIII, any operation other than emergency operation, maintenance and testing, emergency demand response, and operation in non-emergency situations for 50 hours per year, as described in 40 CFR 60.4211(f)(1) through (3), is prohibited. If you do not operate the engine according to the requirements in 40 CFR 60.4211(f)(1) through (3), the engine will not be considered an emergency engine under 40 CFR 60 Subpart IIII and must meet all requirements for non-emergency engines.
 - i. There is no time limit on the use of emergency stationary ICE in emergency situations.
 - ii. You may operate your emergency stationary ICE for any combination of the purposes specified in 40 CFR 60.4211(f)(2)(i) through (iii) for a maximum of 100 hours per calendar year. Any operation for non-emergency situations as allowed by 40 CFR 60.4211(f)(3) counts as part of the 100 hours per calendar year allowed by 40 CFR 60.4211(f)(2).

Emergency stationary ICE may be operated for maintenance checks and readiness testing, provided that the tests are recommended by federal, state or local government, the manufacturer, the vendor, the regional transmission organization or equivalent balancing authority and transmission operator, or the insurance company associated with the engine. The owner or operator may petition the Illinois EPA or USEPA for approval of additional hours to be used for maintenance checks and readiness testing, but a petition is not required if the owner or operator maintains records indicating that federal, state, or local standards require maintenance and testing of emergency ICE beyond 100 hours per calendar year.

- iii. Emergency stationary ICE may be operated for up to 50 hours per calendar year in non-emergency situations. The 50 hours of

operation in non-emergency situations are counted as part of the 100 hours per calendar year for maintenance and testing and emergency demand response provided in 40 CFR 60.4211(f) (2). Except as provided in 40 CFR 60.4211(f) (3) (i), the 50 hours per calendar year for non-emergency situations cannot be used for peak shaving or non-emergency demand response, or to generate income for a facility to an electric grid or otherwise supply power as part of a financial arrangement with another entity.

The 50 hours per year for non-emergency situations can be used to supply power as part of a financial arrangement with another entity if all of the following conditions are met:

- A. The engine is dispatched by the local balancing authority or local transmission and distribution system operator;
 - B. The dispatch is intended to mitigate local transmission and/or distribution limitations so as to avert potential voltage collapse or line overloads that could lead to the interruption of power supply in a local area or region.
 - C. The dispatch follows reliability, emergency operation or similar protocols that follow specific NERC, regional, state, public utility commission or local standards or guidelines.
 - D. The power is provided only to the facility itself or to support the local transmission and distribution system.
 - E. The owner or operator identifies and records the entity that dispatches the engine and the specific NERC, regional, state, public utility commission or local standards or guidelines that are being followed for dispatching the engine. The local balancing authority or local transmission and distribution system operator may keep these records on behalf of the engine owner or operator.
- 12a. Pursuant to 40 CFR 80.510(b), beginning June 1, 2010. Except as otherwise specifically provided in 40 CFR 80 Subpart I, all nonroad (NR) and locomotive (LM) diesel fuel is subject to the following per-gallon standards:
- i. Sulfur content: 15 ppm maximum for NR diesel fuel.
 - ii. Cetane index or aromatic content, as follows:
 - A. A minimum cetane index of 40; or
 - B. A maximum aromatic content of 35 volume percent.
- 13a. In the event that the operation of this source results in an odor nuisance, the Permittee shall take appropriate and necessary actions to minimize odors, including but not limited to, changes in raw material or installation of controls, in order to eliminate the odor nuisance.

- b. The Diesel-Powered Emergency Generators shall only be operated with diesel fuel oil No. 2 as the fuel. The use of any other fuel in any of the engines powering the Emergency Generators may require that the Permittee first obtain a construction permit from the Illinois EPA and then perform stack testing to verify compliance with all applicable requirements.
 - c. Organic liquid by-products or waste materials shall not be used in any emission unit at this source without written approval from the Illinois EPA.
 - d. The Illinois EPA shall be allowed to sample all fuels stored at the above location.
- 14a. Emissions from and operation of Emergency Generators shall not exceed the following:
- i. The annual operation hours of the forty-nine (49) 3,000 kW (4,393 BHP) Emergency Generators (combined) shall not exceed and 1,793 hours/year.

<u>Pollutant</u>	<u>Emission Factor (lb/hp-hr)</u>	<u>Emissions</u>	
		<u>Each Genset</u> <u>(lbs/Hr)</u>	<u>All 49 Gensets</u> <u>(Ton/Yr)</u>
Carbon Monoxide (CO)	0.00145	6.39	5.73
Nitrogen Oxides (NO _x)	0.01234	54.21	48.60
Particulate Matter (PM)	0.00010	0.44	0.39
Sulfur Dioxide (SO ₂)	0.000012	0.05	0.04
Volatile Organic Material (VOM)	0.000095	0.42	0.38

The above limits are based on the rated output of the engines powering each generator 3,000 kW (4,393 BHP), maximum annual operational hours of the emergency generators at 1,793 hours/year, emission factors derived from manufacture data sheets, except for sulfur dioxide which is based on the standard emission factor (Table 3.4-1, AP-42, Fifth Edition, Volume I, Supplement B, October 1996) with a fuel sulfur content of 0.0015%.

- b. Emissions from and operation of Emergency Generators shall not exceed the following:
- i. The annual operation hours of the two (2) 500 kW (762 BHP) Emergency Generators (combined) shall not exceed and 100 hours/year.

<u>Pollutant</u>	<u>Emission Factor (lb/hp-hr)</u>	<u>Emissions</u>	
		<u>Each Genset</u> <u>(lbs/Hr)</u>	<u>All 2 Gensets</u> <u>(Ton/Yr)</u>
Carbon Monoxide (CO)	0.001352	1.03	0.05
Nitrogen Oxides (NO _x)	0.009934	7.57	0.38

Particulate Matter (PM)	0.000052	0.04	0.002
Sulfur Dioxide (SO ₂)	0.000012	0.01	0.0004
Volatile Organic Material (VOM)	0.000052	0.04	0.002

The above limits are based on the rated output of the engines powering each generator 500 kW (762 BHP), maximum annual operational hours of the emergency generators at 100 hours/year, emission factors derived from manufacture data sheets, except for sulfur dioxide which is based on the standard emission factor (Table 3.4-1, AP-42, Fifth Edition, Volume I, Supplement B, October 1996) with a fuel sulfur content of 0.0015%.

- c. Compliance with annual limits shall be determined on a daily basis from the sum of the data for the current day plus the preceding 364 days (running 365 days total).
15. This permit is issued based on the Potential to Emit (PTE) for Hazardous Air Pollutants (HAPs) as listed in Section 112(b) of the Clean Air Act from the Diesel-Powered Emergency Generators being less than 10 tons/year of any single HAP and 25 tons/year of any combination of such HAPs. As a result, this permit is issued based on the emissions of all HAPs from Diesel-Powered Emergency Generators EG1 - EG13 not triggering the requirements of Section 112(g) of the Clean Air Act.
16. This permit is issued based on the Diesel-Powered Emergency Generators each having a displacement of less than 30 liters per cylinder and has been certified by the manufacturer to meet the standards of 40 CFR 60.4202(a) through (d). As a result, this permit is issued based on the diesel-powered emergency generator sets not being subject to the testing requirements of 40 CFR 60.8.
- 17a. Pursuant to 35 Ill. Adm. Code 201.282, every emission source or air pollution control equipment shall be subject to the following testing requirements for the purpose of determining the nature and quantities of specified air contaminant emissions and for the purpose of determining ground level and ambient air concentrations of such air contaminants:
 - i. Testing by Owner or Operator. The Illinois EPA may require the owner or operator of the emission source or air pollution control equipment to conduct such tests in accordance with procedures adopted by the Illinois EPA, at such reasonable times as may be specified by the Illinois EPA and at the expense of the owner or operator of the emission source or air pollution control equipment. The Illinois EPA may adopt procedures detailing methods of testing and formats for reporting results of testing. Such procedures and revisions thereto, shall not become effective until filed with the Secretary of State, as required by the APA Act. All such tests shall be made by or under the direction of a person qualified by training and/or experience in the field of air pollution testing. The Illinois EPA shall have the right to observe all aspects of such tests.

- ii. Testing by the Illinois EPA. The Illinois EPA shall have the right to conduct such tests at any time at its own expense. Upon request of the Illinois EPA, the owner or operator of the emission source or air pollution control equipment shall provide, without charge to the Illinois EPA, necessary holes in stacks or ducts and other safe and proper testing facilities, including scaffolding, but excluding instruments and sensing devices, as may be necessary.
 - b. Testing required by Condition 16 shall be performed upon a written request from the Illinois EPA by a qualified independent testing service.
18. Pursuant to 35 Ill. Adm. Code 212.110(c), upon a written notification by the Illinois EPA, the owner or operator of a particulate matter emission unit subject to 35 Ill. Adm. Code Part 212 shall conduct the applicable testing for particulate matter emissions, opacity, or visible emissions at such person's own expense, to demonstrate compliance. Such test results shall be submitted to the Illinois EPA within thirty (30) days after conducting the test unless an alternative time for submittal is agreed to by the Illinois EPA.
19. Pursuant to 40 CFR 60.4209(a), if you are an owner or operator, you must meet the monitoring requirements of 40 CFR 60.4209. In addition, you must also meet the monitoring requirements specified in 40 CFR 60.4211.

If you are an owner or operator of an emergency stationary CI internal combustion engine that does not meet the standards applicable to non-emergency engines, you must install a non-resettable hour meter prior to startup of the engine.

20. Pursuant to 40 CFR 60.4214(b), if the stationary CI internal combustion engine is an emergency stationary internal combustion engine, the owner or operator is not required to submit an initial notification. Starting with the model years in table 5 to 40 CFR 60 Subpart IIII, if the emergency engine does not meet the standards applicable to non-emergency engines in the applicable model year, the owner or operator must keep records of the operation of the engine in emergency and non-emergency service that are recorded through the non-resettable hour meter. The owner must record the time of operation of the engine and the reason the engine was in operation during that time.
21. Pursuant to 40 CFR 63.10(b)(3), if an owner or operator determines that his or her stationary source that emits (or has the potential to emit, without considering controls) one or more hazardous air pollutants regulated by any standard established pursuant to section 112(d) or (f) of the Clean Air Act, and that stationary source is in the source category regulated by the relevant standard, but that source is not subject to the relevant standard (or other requirement established under 40 CFR Part 63) because of limitations on the source's potential to emit or an exclusion, the owner or operator must keep a record of the applicability determination on site at the source for a period of 5 years after the determination, or until the source changes its

operations to become an affected source, whichever comes first. The record of the applicability determination must be signed by the person making the determination and include an analysis (or other information) that demonstrates why the owner or operator believes the source is unaffected (e.g., because the source is an area source). The analysis (or other information) must be sufficiently detailed to allow the USEPA and/or Illinois EPA to make a finding about the source's applicability status with regard to the relevant standard or other requirement. If relevant, the analysis must be performed in accordance with requirements established in relevant subparts of 40 CFR Part 63 for this purpose for particular categories of stationary sources. If relevant, the analysis should be performed in accordance with USEPA guidance materials published to assist sources in making applicability determinations under Section 112 of the Clean Air Act, if any. The requirements to determine applicability of a standard under 40 CFR 63.1(b)(3) and to record the results of that determination under 40 CFR 63.10(b)(3) shall not by themselves create an obligation for the owner or operator to obtain a Title V permit.

22. Pursuant to 35 Ill. Adm. Code 212.110(e), the owner or operator of an emission unit subject to 35 Ill. Adm. Code Part 212 shall retain records of all tests which are performed. These records shall be retained for at least three (3) years after the date a test is performed.
- 23a. Pursuant to 35 Ill. Adm. Code 214.305(a)(3), except as provided in 35 Ill. Adm. Code 214.305(b), (c), and (d), on and after January 1, 2017, the owner or operator of a process emission source must comply with the following:

The owner or operator must:

- i. Maintain records demonstrating that the fuel oil used by the process emission source complies with the requirements in 35 Ill. Adm. Code 214.305(a)(1) and (a)(2), such as records from the fuel supplier indicating the sulfur content of the fuel oil;
 - ii. Retain the records for at least 5 years, and provide copies of the records to the Illinois EPA within 30 days after receipt of a request by the Illinois EPA; and
- 24a. The Permittee shall maintain records of the following items so as to demonstrate compliance with the conditions of this permit:
- i. Diesel generator runtime (hours/day and hours/year);
 - ii. Amount of fuel used (gallons/day, gallons/year);
 - iii. An inspection, maintenance and repair log of the generators listing each activity performed with date; and
 - iv. Daily and annual emissions of CO, NO_x, PM, SO₂, and VOM from Diesel-powered Emergency Generators, with supporting calculations (tons/day and tons/year).

- b. All records and logs required by Condition 24(a) of this permit shall be retained at a readily accessible location at the source for at least five (5) years from the date of entry and shall be made available for inspection and copying by the Illinois EPA or USEPA upon request. Any records retained in an electronic format (e.g., computer storage device) shall be capable of being retrieved and printed on paper during normal source office hours so as to be able to respond to an Illinois EPA or USEPA request for records during the course of a source inspection.
- 25a. Pursuant to 40 CFR 60.7(a), any owner or operator subject to the provisions of 40 CFR Part 60 shall furnish the Illinois EPA or USEPA written notification or, if acceptable to both the Illinois EPA and USEPA and the owner or operator of a source, electronic notification, as follows:
- i. A notification of the date construction (or reconstruction as defined under 40 CFR 60.15) of an affected facility is commenced postmarked no later than 30 days after such date. This requirement shall not apply in the case of mass-produced facilities which are purchased in completed form.
 - ii. A notification of the actual date of initial startup of an affected facility postmarked within 15 days after such date.
 - iii. A notification of any physical or operational change to an existing facility which may increase the emission rate of any air pollutant to which a standard applies, unless that change is specifically exempted under an applicable subpart or in 40 CFR 60.14(e). This notice shall be postmarked 60 days or as soon as practicable before the change is commenced and shall include information describing the precise nature of the change, present and proposed emission control systems, productive capacity of the facility before and after the change, and the expected completion date of the change. The Illinois EPA or USEPA may request additional relevant information subsequent to this notice.
26. Pursuant to 35 Ill. Adm. Code 212.110(d), a person planning to conduct testing for particulate matter emissions to demonstrate compliance shall give written notice to the Illinois EPA of that intent. Such notification shall be given at least thirty (30) days prior to the initiation of the test unless a shorter period is agreed to by the Illinois EPA. Such notification shall state the specific test methods from 35 Ill. Adm. Code 212.110 that will be used.
27. Pursuant to 35 Ill. Adm. Code 214.305(a) (3) (C), except as provided in 35 Ill. Adm. Code 214.305(b), (c), and (d), on and after January 1, 2017, the owner or operator of a process emission source must comply with the following:

The owner or operator must notify the Illinois EPA within 30 days after discovery of deviations from any of the requirements in this 35 Ill. Adm. Code 214.305(a). At minimum, and in addition to any permitting

obligations, such notification must include a description of the deviations, a discussion of the possible cause of the deviations, any corrective actions taken, and any preventative measures taken.

28a. If there is an exceedance of or a deviation from the requirements of this permit as determined by the records required by this permit or otherwise, the Permittee shall submit a report to the Illinois EPA's Bureau of Air Compliance Section in Springfield, Illinois within thirty (30) days after the exceedance or deviation. The report shall identify the duration and the emissions impact of the exceedance or deviation, a copy of the relevant records and information to resolve the exceedance or deviation, and a description of the efforts to reduce emissions from, and the duration of exceedance or deviation, and to prevent future occurrences of any such exceedance or deviation.

b. One (1) copies of required reports and notifications shall be sent to:

Illinois Environmental Protection Agency
Bureau of Air
Compliance Section (#40)
P.O. Box 19276
Springfield, Illinois 62794-9276

It should be noted that the Forty-nine (49) diesel fuel sub-base tank are exempt from permitting pursuant to 35 Ill. Adm. Code 201.146(n)(3).

If you have any questions on this permit, please call Joseph Odele at 217/785-1705.

William D. Marr
Manager, Permit Section
Bureau of Air

WDM:JBO:tan



STATE OF ILLINOIS
ENVIRONMENTAL PROTECTION AGENCY
DIVISION OF AIR POLLUTION CONTROL
P. O. BOX 19506
SPRINGFIELD, ILLINOIS 62794-9506

**STANDARD CONDITIONS FOR CONSTRUCTION/DEVELOPMENT PERMITS
ISSUED BY THE ILLINOIS ENVIRONMENTAL PROTECTION AGENCY**

July 1, 1985

The Illinois Environmental Protection Act (Illinois Revised Statutes, Chapter 111-1/2, Section 1039) authorizes the Environmental Protection Agency to impose conditions on permits which it issues.

The following conditions are applicable unless superseded by special condition(s).

1. Unless this permit has been extended or it has been voided by a newly issued permit, this permit will expire one year from the date of issuance, unless a continuous program of construction or development on this project has started by such time.
2. The construction or development covered by this permit shall be done in compliance with applicable provisions of the Illinois Environmental Protection Act, and Regulations adopted by the Illinois Pollution Control Board.
3. There shall be no deviations from the approved plans and specifications unless a written request for modification, along with plans and specifications as required, shall have been submitted to the Agency and a supplemental written permit issued.
4. The Permittee shall allow any duly authorized agent of the Agency upon the presentation of credentials, at reasonable times:
 - a. to enter the Permittee's property where actual or potential effluent, emission or noise sources are located or where any activity is to be conducted pursuant to this permit,
 - b. to have access to and copy any records required to be kept under the terms and conditions of this permit,
 - c. to inspect, including during any hours of operation of equipment constructed or operated under this permit, such equipment and any equipment required to be kept, used, operated, calibrated and maintained under this permit,
 - d. to obtain and remove samples of any discharge or emission of pollutants, and
 - e. to enter and utilize any photographic, recording, testing, monitoring or other equipment for the purpose of preserving, testing, monitoring, or recording any activity, discharge, or emission authorized by this permit.
5. The issuance of this permit:
 - a. shall not be considered as in any manner affecting the title of the premises upon which the permitted facilities are to be located,
 - b. does not release the Permittee from any liability for damage to person or property caused by or resulting from the construction, maintenance, or operation of the proposed facilities,
 - c. does not release the Permittee from compliance with the other applicable statutes and regulations of the United States, of the State of Illinois, or with applicable local laws, ordinances and regulations,
 - d. does not take into consideration or attest to the structural stability of any units or parts of the project, and

- e. in no manner implies or suggests that the Agency (or its officers, agents or employees) assumes any liability, directly or indirectly, for any loss due to damage, installation, maintenance, or operation of the proposed equipment or facility.
- 6.
- a. Unless a joint construction/operation permit has been issued, a permit for operation shall be obtained from the Agency before the equipment covered by this permit is placed into operation.
 - b. For purposes of shakedown and testing, unless otherwise specified by a special permit condition, the equipment covered under this permit may be operated for a period not to exceed thirty (30) days.
7. The Agency may file a complaint with the Board for modification, suspension or revocation of a permit:
- a. upon discovery that the permit application contained misrepresentations, misinformation or false statements or that all relevant facts were not disclosed, or
 - b. upon finding that any standard or special conditions have been violated, or
 - c. upon any violations of the Environmental Protection Act or any regulation effective thereunder as a result of the construction or development authorized by this permit.